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Eyecon Privacy Policy

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Eyecon Global Ltd. ("**Company**", "**we**", "**our**" or "**us**") respects the privacy of the users of our mobile application ("**App**"), and is fully committed to protect the personal information that users share with it in connection with the use of our App. This Privacy Policy (the "**Privacy Policy**") is intended to describe our practices regarding the information we may collect from you (the "**User**" or "**you**") when you use our App, the manners in which we may use such information, and the options and rights available to you. Capitalized terms which are not defined herein, shall have the meaning ascribed to them in our End User License Agreement (the "**EULA**"), available at https://www.eyecon-app.com/docs/eula.html which this Privacy Policy is incorporated thereto by reference.

1. **Your Consent – please read carefully.**

By downloading, installing, accessing and/or using the App you agree to the terms and conditions set forth in this Privacy Policy, including to the collection and processing of your Personal Information (as defined below). If you disagree to any term hereof, you may not download, install, access or use the App, and must promptly and permanently remove the App and any part thereof from your systems and devices, and cease any and all use thereof. Please note: you are not obligated by law to provide us with any Personal Information. You hereby acknowledge and agree that you are providing us with Personal Information at your own

free will, for the purposes described herein, and that we may retain such Personal Information in accordance with this Privacy Policy and any applicable laws and regulations.

2. **Which information we may collect on our Users?**

We may collect two types of data and information from our Users: **(i) Non-personal Information**, which is non-identifying and non-identifiable information, without particular reference to the identity of the User from which such information was collected; and **(ii) Personal Information**, which is individually identifiable information that identifies an individual, or may with reasonable effort identify an individual, either alone or in combination with other information, or may be of private or sensitive nature. For the avoidance of doubt, any Non-personal Information connected or linked to any Personal Information shall be deemed as Personal Information as long as such connection or linkage exists. Personal and Non-personal Information which is being gathered in connection with the App may consist of the following:

- We may automatically collect and the User may automatically provide us with certain technical Non-personal Information and aggregated usage information, such as the User's mobile device brand and model, operating system type and version, country code, which Third-Party Services' applications are installed on the User's device and User's uses thereof through the App, the User's manual configurations, 'click-stream', interactions and activities on the App, the period of time the User used the App and related time stamps, crash and error logs, etc.
- When registering to the App, the User will be asked to provide his/her phone number, name, and photo, which will be used in order to allow us to provide our Users with the App's services and experience. Such information may be provided to other Users via the Advanced Search Functionality and Matching Functionality, as a confirmed match to such relevant User's contact information.
- For the App to provide the Advanced Search Functionality and the Matching Functionality, as such terms are defined in the EULA, it may require certain access permissions to information stored on User's device regarding the User's contacts ("**Contact Information**"). Such information may also include Contact Information stored locally by the User relating to certain third-party applications installed on the device (e.g., Skype, WhatsApp, Viber etc.), as well as such contacts social networks IDs. Such Contact Information may be utilized in order to use additional features of the App reliant upon such permissions.
- In the event you decide to use the Advanced Search Functionality and Matching Functionality of the App, you will provide us with Contact Information , and confirm that such contacts are aware that you have provided their data and that they consent

(and continue to consent as long as you use the Advanced Search Functionality and Matching Functionality) to our processing of such data stored on your device, according to our Privacy Policy.

- In addition, for the provision of the Advanced Search Functionality and Matching Functionality, the App may gather public information available online (including via social networks) regarding the Users and User contacts. For the avoidance of doubt, any information related to a User's contacts (whom are not Users themselves) which is provided to a User via the Advanced Search Functionality and Matching Functionality is provided merely as a suggested match and is not intended to be used as or relied upon by a User as a confirmed match to such relevant User's contact.
- The App may also require for its proper functioning that the User chooses to grant us with certain access permissions to his/her existing Facebook account ("**FB Account**"), and thereby provide us with certain information about the User, such as the User's photo, date of birth and list of friends, as made available by the User through his/her FB Account.
- Before using Eyecon's call recording feature, it is your responsibility to inform all participants of such recorded calls of your intended use of the call recording and to obtain all consents and approvals for the recording of the call, as necessary or advisable under applicable law in your state and country, that all consents and approvals for the recording have been obtained, and use of the recording feature
  does not breach or infringe on the rights of any third party, including privacy rights.. Please note that recordings will only be stored on your device (or any third party backup service which you choose to use) and not on Eyecon's servers. Eyecon expressly disclaims any and all liabilities related to or arising from your use of Eyecon's call recording feature and/or arising out of or related to your violation of any laws or regulations applicable to call recordings.
- You may also provide us certain information through your interactions with the Advanced Search Functionality and Matching Functionality. For example, you may match your Contact Information with
  certain information suggested to you by the App. The App records such matches in order to allow us to provide our Users with the App's services and experience.
- Further, for the purpose of securing the App and user authentication access, the App may also collect a User's Device ID.
- In order to be able to provide and display messages (SMS) within Eyecon and to block unwanted and SPAM SMSes, Eyecon needs the user to grant SMS permissions for this use.
- When You install and use the Services, Eyecon will collect personal information from You and any devices You may use in Your interaction with our Services. This information may include e.g.: geo-location; Your IP address; device ID or unique identifier;

device manufacturer and type; device and hardware settings; SIM card usage; applications installed on your device; ID for advertising; ad data, operating system; web browser; operator; IMSI; connection information; screen resolution; usage statistics; default communication applications; access to device address book; device log and event information; logs, keywords and meta data of incoming and outgoing calls and messages; version of the Services You use and other information based on Your interaction with our Services such as how the Services are being accessed (via another service, web site or a search engine); Your paired devices (such as smart watch); the pages You visit and features you use on the Services; the services and websites You engage with from the Services; content viewed by You, content You have commented on or sent to us and information about the ads You see and/or engage with; the search terms You use; order information and other usage activity and data logged by Eyecon's servers from time to time. Eyecon may collect some of this information automatically through use of cookies. Some information, including, but not limited to, usage information and other information that may arise from Your interaction with the Services, cannot be used to identify You, whether in combination with other information or otherwise and will not constitute personal information for the purposes of this Policy.

- The App may also collect Internal Account information (such as the email address associated with the User's Google account) in order to sync the User's profile across devices, personalize the App experience, and enable core functionality. This data is collected with the User's consent and uploaded to our servers only while the App is in use.
- Finally, the User may voluntarily provide us with any other Non-personal and Personal Information, such as certain Contact Information provided by the User when contacting us (and any additional information related to such contacts), and/or other information related to actions performed by the User in connection with the App.

Please Note: We will require to upload your Contact Information to our servers for the purpose of providing you with certain services within the App. We do not collect any Personal Information from you or related to you without your approval, which is obtained, inter alia, through your active acceptance to the EULA and the Privacy Policy.

3. **How Do We Collect and Store Information of Our Users?**

We use the following methods of collection:

(i) We collect Non-personal Information through your use of the App. In other words, we may be aware of your use of the App, and may gather, collect and record the information relating to such usage, either independently or through the help of

third-party app as detailed below. We may also collect Non-personal Information through the processing, analysis, aggregation and anonymization of Personal Information provided by you.

(ii) We collect Personal Information which you provide us voluntarily. For example, we collect Personal Information when you contact us directly for questions or help.

(iii) We collect Personal Information which is publicly available from third-party online sources. For example, we collect Personal Information from public profiles in social media networks.

(iv) Third Parties. We may store the Non-personal and Personal Information either independently or with the help of our authorized third-party service providers as detailed below.

4. **What are the Purposes of the Collection of Information?**

We collect Non-personal and Personal Information in order to provide you with the App services and experience; to enable us to further develop, customize and improve the App based on Users' common preferences, uses, attributes and anonymized data; to create and provide our research and business partners and affiliates with anonymized aggregated data and/or statistical or inferred Non-personal Information; to enable us to provide our Users with a better user experience, with more relevant and accurate information, services, features and functionalities, and with technical assistance and support; to further improve and develop security and authentication methods and features for the purpose of securing your use of the App; and in order to abide by any applicable law. We may contact you by SMS, email, or other notifications to provide you with information about our App services or special offers. We may also contact you for verification purposes. We may use information collected to respond to you if you contact us. We collect Contact Information in order to provide with the Advanced Search Functionality, and Matching Functionality, which allows a User to identify unknown and unfamiliar phone numbers and have its address book contacts automatically associated with corresponding publicly available pictures and social network IDs of such contacts. A number will be associated with a name, picture and/or social network IDs through these functionalities if a sufficient number of independent Users, based on our algorithm, have indicated the same name, picture and/or social network IDs for the relevant number.

5. **Where Do We Store Personal Information?**

Information regarding the Users will be maintained, processed and stored by the Company and our authorized affiliates and service providers in Europe, USA, and India as necessary, in secured cloud storage provided by our Third-Party Services. While the data protection laws in the above jurisdictions may be different than the laws of your residence or location, please know that the Company, its affiliates and service providers that store or process your Personal Information on the Company's behalf are each committed to keep it protected and secured, in accordance with this Privacy Policy and industry standards, regardless of any lesser legal requirements that may apply in their jurisdiction. You hereby agree to the storage location and transfer of information as described hereunder.

6. **Legal Bases**

We collect, process and use your information for the purpose described in this Privacy Policy based on at least one of the following legal basis:

- Our legitimate interests
- In order to provide you with the App's services and experience
- Based on your consent

7. **Sharing Information with Third Parties**

The Company will not share any Personal Information it collects with any third party, except in the following cases:

- to provide, maintain, improve, analyze and personalize the App's services and experience for our Users
- to collect, hold, process and/or manage your Personal Information through Company's authorized third-party service providers
- to collect, hold, process and/or manage your Personal Information through Company's authorized third-party service providers
- to enforce this Privacy Policy and/or the EULA, including investigation of potential violations thereof;
- to detect, prevent, or otherwise address fraud, security or technical issues;
- to respond to User's support requests or other correspondences;

- to respond to claims that any use of the App violates the rights of third parties;
- to protect the rights, property, or personal safety of us, any of our Users, or the general public;
- when we are undergoing any change in control, including by means of merger, acquisition or purchase of all or substantially all of its assets but solely under appropriate confidentiality obligations;
- pursuant to your explicit approval prior to the disclosure

For avoidance of doubt, the Company may transfer and disclose to third parties or otherwise use Non-personal Information at its own discretion. Notwithstanding the above, as a part of our operating model, and to enable the delivery of Services, we may also, from time to time, make repositories containing certain Personal Information searchable or usable by third party business partners, for the purposes of their services and business operations. You hereby consent to disclosure of your Personal Information to
them and their usage of it. This may include Personal Information that you have submitted to us in the past. As some of our business partners may be located outside your country, you consent to the transfer of your Personal Information to this extent.

8. **Modification or Deletion of Personal Information**

If the law applicable to you grants you such rights, you may ask to access, correct, or delete your personal information that is stored in our systems. You may also ask for our confirmation as to whether or not we process your personal information. Subject to the limitations in law, you may request that we update, correct, or delete inaccurate or outdated information. You may also request that we suspend the use of any personal information whose accuracy you contest while we verify the status of that data. Subject the limitations in law, you may also be entitled to obtain the personal information you directly provided us (excluding data we obtained from other sources) in a structured, commonly used, and machine-readable format and may have the right to transmit such data to another party. If you wish to exercise any of these rights, contact us at support@eyecon-app.com. When handling these requests, we may ask for additional information to confirm your identity and your request. Please note, upon request to delete your personal information, we may retain such data in whole or in part to comply with any applicable rule or regulation and/or response or defend against legal proceedings versus us or our affiliates. To find out whether these rights apply to you and on any other privacy related matter, you can contact your local data protection authority if you have concerns regarding your rights under local law.

9. **Minors**

To use the App, you must be over the age of thirteen (13). The Company does not knowingly collect Personal Information from children under the age of thirteen (13) and does not wish to do so. We reserve the right to request proof of age at any stage so that we can verify that minors under the age of thirteen (13) are not using the App. In the event that it comes to our knowledge that a person under the age of thirteen (13) is using the App, we may prohibit and block such User from using the App and will make all efforts to promptly delete any Personal Information with respect to such User.

10. **Security and Retention**

We take a great care in implementing and maintaining the security of the App, and our Users' Personal Information and Contact Information. The Company employs industry standard procedures and policies to ensure the safety of its Users' Personal Information and Contact Information and prevent unauthorized use of any such information. However, we do not and cannot guarantee that unauthorized access will never occur. We retain the Personal Information we collect only for as long as needed in order to provide you with our services and to comply with applicable laws and regulations. We then either delete from our systems or anonymize it without further notice to you. If you withdraw your consent to us processing your Personal Information, we will delete your Personal Information from our systems (except to the extent such data in whole or in part to comply with any applicable rule or regulation and/or response or defend against legal proceedings versus us or our affiliates).

11. **Third-Party Software/ Services**

The App may utilize certain third-party software and/or service, in order to collect and/or process the information detailed herein. Such third-party software providers include:

- Google Analytics, which privacy policy is available at https://www.google.com/analytics/terms/us.html;
- Facebook Analytics, which privacy policy is available at https://www.facebook.com/privacy/explanation;
- Amazon Web Services, which privacy policy is available at https://aws.amazon.com/privacy/?nc1=f_pr;
- Firebase, which privacy policy is available at https://www.firebase.com/terms/privacy-policy.html;

Our App uses certain tracking technologies in order to:

- To analyze User's behavior while using the App
- Enhance your user experience on the App
- To recognize you when you are using the App
- Provide you with personalized advertisements

12. **Third-Party Services**

The App may offer you links to certain Third-Party Services' applications installed on your device, through which you may further interact with your mobile contacts. Please be advised that such Third-Party Services are independent from Company, and may collect non-personal and/or personal information about you. We assume no responsibility or liability whatsoever with regard to privacy matters or any other legal matter with respect to such Third-Party Services. We encourage you to carefully read the privacy policies and the terms of use of such Third-Party Services, as their terms, not ours, will apply to any of your interactions with or through such Third-Party Services.

13. **Direct Marketing**

You hereby agree that we may use your contact details that you have provided us (such as the phone number you provided when registering to the App) for the purpose of informing you regarding our products and services, to ask you to participate in user surveys, and to send you other marketing materials and newsletters. You may withdraw your consent by clicking the "Unsubscribe" button in a message sent to you, or by sending us a written notice by e-mail to the following address: support@eyecon-app.com.

14. **Changes to the Privacy Policy**

The Company reserves the right to change this Privacy Policy at any time, so please re-visit this page frequently. We will provide notice of substantial changes of this Privacy Policy on the App. Such substantial changes will take effect seven (7) days after such notice was provided on any of the abovementioned methods. Otherwise, all other changes to this Privacy Policy are effective as

of the stated “Last Revised” date, and your continued use of the App after the Last Revised date will constitute acceptance of, and agreement to be bound by, those changes.

15. **Have any Questions?**

If you have any questions (or comments) concerning this Privacy Policy, you are welcome to send us an email at support@eyecon-app.com, and we will make an effort to reply within a reasonable timeframe. By contacting us or downloading and using the App, you represent that you are free to do so and that you will not knowingly provide Company with information that infringes upon third parties’ rights, including any intellectual property rights or privacy rights. You further acknowledge that notwithstanding anything herein to the contrary, any and all rights, including intellectual property rights in the App, its output or any derivative thereof, shall belong exclusively to the Company as further specified in the EULA, and Company may use or refrain from using any such information at its sole discretion.